

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	17-07-2026 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	17-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Bihar
विभाग का नाम/Department Name	Urban Development & Housing Department Bihar
संगठन का नाम/Organisation Name	Urban Development And Housing Department
कार्यालय का नाम/Office Name	Nagar Panchayat Bahadurganj Kishanganj
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :amit.8334@bihar.gov.in Buyer Email id: buycon26.udhd.bh@gembuyer.in
कुल मात्रा/Total Quantity	99
वस्तु श्रेणी /Item Category	Camera for CCTV System (V3) (Q2)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	99 Lakh (s)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)	200 Lakh (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	50% Lowest Priced Technically Qualified Bidders
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	200000

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document

for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

EXECUTIVE OFFICER

Nagar Panchayat Bahadurganj Kishanganj, Urban Development & Housing Department Bihar, Urban Development and Housing Department,
(Executive Officer Nagar Panchayat Bahadurganj)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Reverse Auction would be conducted amongst first 50% of the technically qualified bidders arranged in the order of prices from lowest to highest. Number of sellers eligible for participating in RA would be rounded off to next higher integer value if number of technically qualified bidders is odd (e.g. if 7 bids are technically qualified, then RA will be conducted amongst L-1 to L-4). In case number of technically qualified bidders are 2 or 3, RA will be between all without any elimination. If Buyer has chosen to split the bid amongst N sellers, then minimum N sellers would be taken to RA round. In case Primary products of only one OEM are left in contention for participation in RA based on lowest 50% bidders qualifying for RA, the number of sellers qualifying for RA would be increased to get at least products of one more OEM (directly participated or through its reseller) if available. Further, if bid(s) of any seller(s) eligible for MSE preference is / are coming within price band of 15% of Non MSE L-1 or if bid of any seller(s) eligible for Make in India preference is / are coming within price band of 20% of non MII L-1, then such MSE / Make in India seller shall also be allowed to participate in the RA process.

Camera For CCTV System (V3) (99 pieces)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Application	Intended Application	CCTV cameras are used for surveillance and security across various settings like residential areas, commercial buildings, and public spaces. it helps in monitor traffic, enhance public safety, homes, offer remote monitoring, aid environmental monitoring
Generic	PTZ Camera / Speed Dome Camera	No
	Type of Camera Housing	Bullet Camera
	IP Camera	Yes
	Camera Image Sensing capacity	8MP(3840 X 2160 Pixel) or better
	Maximum Resolution	4K (3840 X 2160 Pixel)
	Maximum Frame Rates(frames per second) Supported	25/30, 50/60 Or higher
	Number of simultaneous video Streams	Dual stream (Full/Compressed), Triple stream(Full/Compressed), Quad Stream(Full/Compressed)
	IR illumination Range(meter)	Not provided, 5-14, 15-30, 31-50, 51-70, 71-100, 101-200, 201-300, 301-400, 401-500, 501-600 Or higher
Construction	Installation Type/ Area of use	Outdoor
	Ingress Protection	IP 67, IP 68 Or higher
Optics/ Performance	Lens Type	Fixed, Varifocal Motorized, Varifocal (Manual), Fisheye
	Focal Length for Fixed / Fisheye Lens Type (mm)	1.6 or better, 2.8 or better, 3.6 or better, 4 or better, 6 or better, 8 or better, 12 or better, NA (being varifocal Lens)
	Focal Length for Varifocal Lens Type (mm)	Max 9 mm or better, Max 12 mm or better, Max 15 mm or better, Max 20 mm or better, Max 30 mm or better, Max 40 mm or better, Max 50 mm or better, Max 75 mm or better, Max 100 mm or better, Max 125 mm or better, Max 150 mm or better, Max 200 mm or better, Max 250 mm or better, Max 300 mm or better, NA (being fixed lens)
	Optical Zoom	2X - 3X, more than 3X - 5X, more than 5X - 8X, more than 8X - 12X, more than 12X - 16X, more than 16X - 20X, more than 20X - 25X, more than 25X - 30X, more than 30X - 35X, more than 35X - 40X, more than 40X - 45X, more than 45X - 50X, NA(being fixed lens) Or higher

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Feature/Accessories	Salient Features	White Balance (Indoor/Out door/Manual Selectable), Auto Gain Control (On/Off selectable), Back Light Compensation, Remote Administration (Remote configuration and status using web based tool), Remote System Update Over Network, PC Client (PC application client with a channel recording feature support), Web Client (Viewer through HTTP system configuration), On Screen Display
	Optional Features	Day/Night Capable, Built-in microphone
	Security Features	Multi Level User ID/Password, IP Address Filtering, Encrypted Data Transmission (HTTPS (SSL/TSL)), Watermark, Signed Firmware
Network And Interface	Type of network required to transmit video / Image recorded by camera	Wireless (Wi-Fi based), Wireless (cellular-(5G) / SIM based but SIM is not inclusive in the scope of supply), Wired
	Features of Network And Interface	Static IP Support, Dynamic IP Support, Digital Signal Processing, IPv6 ready, ONVIF Support
Storage	On Board SD Card Support	Yes, No
	SD Card Capacity	128 GB, 256 GB, 512 GB, 1 TB, NA Or higher
Power Supply	Power Input	PoE, 12 VDC/ 24 VDC without adaptor
Warranty / Service	Comprehensive Warranty (Year)	2, 3, 4, 5 Or higher
	Time Duration for Repairing /Replace the defect during Warranty	Within one week, Within Two week Or higher
	Response Time to attend the complaint during Warranty	24 Hour, 48 Hour, 72 Hour, NA Or higher
	Supply of compatible drivers and software included	Yes, No
Buyer Specific Requirements	Supported Protocols	HTTP, HTTPS, DNS, TCP/IP, IPv4, IPv6
Certification / Test Report	Availability of security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by Meity or BIS certificate indicating ER	Yes (Complying to the requirement of clause 5 of S.O. 1119 (E) on the subject: Public Procurement (Prefence to make in India) Order 2017-Notifying CCTV/Video Surveillance System for Security in furtherance of the order at dated 6th March, 2024 or Latest)
	BIS Registration (CRS) for safety general requirements as per IS 13252 (Part 1):latest indicating ER (for CCTV Camera)	Yes

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Type of lab which carried out Test of Complete Product to prove the conformity of product as per Governing Specification	Certificate of Govt.Lab/NABL/ILAC accredited.
	Agree to provide all relevant documents Test Report/supporting document /reports etc to the buyer at the time of bidding or on demand	Yes

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Md Istehar Alam	855101,Nagar Panchayat Bahadurganj	99	90

Buyer added Bid Specific Additional Scope of Work

क्र.सं./S.No.	Document Title	Description	रिवर्स प्रभार के अनुसार जीएसटी/Applicable i.r.o. Items
1	Detail of work description for installation of CCTV. View	Detail of work description for installation of CCTV.	Camera For CCTV System (V3) (99)

The uploaded document only contains Buyer specific Additional Scope of Work and / or Drawings for the bid items added with due approval of Buyer's competent authority. Buyer has certified that these additional scope and drawings are generalized and would not lead to any restrictive bidding.

Special terms and conditions-Version:2 effective from 18-02-2025 for category Camera for CCTV System (V3)

1. **Note to Buyers:**
 - a. The Central Ministries/ Departments and other government buyers as applicable shall take cognizance of "Public Procurement (Preference to Make in India) Order 2017-Notifying CCTV/ Video Surveillance dated 6th March 2024, System for Security in furtherance of the Order" 5 " while procuring The surveillance devices i.e., CCTV Cameras (Analog/ IP/ Analog Speed Dome/ IP Speed Dome) should comply with the Essential Requirements (ERs) for security prescribed by MeitY to ensure the security of the VSS / CCTV systems, as per the Appendix 'A', as amended from time to time. The security testing report for CCTV/VSS is to be issued by the Standardisation Testing and Quality Certification (STQC) Laboratory or any other agency notified by MeitY from time to time. The validity of the test report issued by STQC Lab will be three years from the date of issue of the report. These Essential Requirements (ERs) for security of CCTV Cameras/VSS system will be enforced after 3 months from the date

of issuance of this Notification. The security norms for the DVR and NVR will be notified subsequently." Accordingly, compliance regarding security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by MeitY shall be ensured before accepting/releasing CRAC of the supplied stores. **Please note that the certified product list meeting Essential Requirements (ERs) is available at <https://www.stqc.gov.in/iot-system-certification-scheme-iots-cs-0>**

- b. Buyers are also expected to strictly ensure compliance with the MHA advisory issued by O.M. IV-24011/22/2020-Prov-I/270 dated 26 April 2024. Where in inter alia following is stipulated.
 - i. All Government agencies are advised that henceforth they may procure their CCTVs and allied solutions and hardware based on the Public Procurement Order 2017 and ensure the security of CCTV systems as mentioned in the above-mentioned notifications.
 - ii. Further, MeitY has issued an Advisory vide O.M. dated W-43/11/2021-IPHW dated 11 March 2024 on the Threat of Information through CCTV/Video Surveillance System (VSS)/Digital Video Recorders/Network Video Recorders. All Government agencies are advised to adhere to the guidelines outlined within the ambit of the Public Procurement Orders to safeguard the overall security and integrity of CCTV Cameras.
 - iii. Additionally, further notification from relevant government department or ministry pertaining to the aforementioned PPO is to be complied with.
 - c. Buyer is expected to apply all relevant filters against "Golden/Filterable" parameters to clearly define their technical requirements.
 - i. **For Procurement through BID/RA:** -One and only one value to be specified by the buyer against "Golden" parameters. Selecting "Any value" against GOLDEN parameters may result in incomplete specification in the bid and finally result in a vague contract. Accordingly any bid not having specific value against the GOLDEN parameters resulting in limited competition or higher cost to the exchequer or incomplete/ vague contract, the Buyer shall be solely responsible.
 - ii. **For Procurement through DIRECT/L1:**Buyers are advised to apply filters/ selections allowing all the values that are considered meeting or are better than their technical requirements. For any violation of the above, if resulting in limited competition or higher cost to the exchequer, the Buyer shall be solely responsible.
 - d. Buyer intending to buy Camera for CCTV System (V2) with optional accessories, and optional features shall use BID/RA. These optional kind of parameters are multi-select for the seller, the buyer shall stipulate/select only required accessories in their bid/RA. The required accessories as per bid/RA shall only be verified before accepting the stores. This is to ensure strict compliance of supplied stores to the bid requirement including ATC if any. However, the contract generated may have mentioned accessories other than the bid/RA requirement due to the fact that the contract gets generated based on the catalog uploaded by the OEM/seller. This type of optional parameter is to enable the seller without creating multiple catalogs for given base models having capabilities to be upgraded.
 - e. Direct/L1 procurement with a selection of optional accessories will not be covered in supply through their names/ offer may be appearing in the contract but seller/supplier do not supply the same being optional and the buyer has not exercised their right to choose by specifying the same in bid/RA.
 - f. Buyer shall also refer to GTC Clause 4. xiii.(w). The ATC / additional specification if any added by the buyer shall not be contradictory to the GeM category specifications / technical particulars (TP).
 - g. Buyer/ consignee shall verify all the parameters/ specification including the specification which are to be as per the OEM brochure before issuing CRAC.
 - h. The consignee is also required to verify the mandatory (CRS) BIS registration of the supplied stores to the IS 13252 Part 1 (2010) before accepting/ CRAC.
2. **Note to Sellers: -**
- a. Seller may refer to GTC and ensure strict compliance of the uploaded/offered product which shall be in line with their model having the claimed specifications or better.
 - b. In case the seller's declared values are contradictory to the specifications provided elsewhere in the TP; the specification claimed in the TP shall supersede the seller's declared values.
 - c. Also, the same model shall not be uploaded across catalogs with unreasonable/ contradictory offerings.
 - d. In case any discrepancy is observed in the offered/ uploaded products, the OEM dashboard of the respective Brand may be removed, and the account shall be suspended as per IM policy.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

1. **Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3. **Turnover**

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

4. **Turnover**

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

5. **OEM**

IMPORTED PRODUCTS: In case of imported products, OEM or Authorized Seller of OEM should have a registered office in India to provide after sales service support in India. The certificate to this effect should be submitted.

6. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

Buyer Added text based ATC clauses

1. Bidder Should have upload Pan card, GST and last 03 months GST Return Copy.
2. Bidder should have to upload character certificate.
3. EMD Exemption is not allowed, such seller is liable to be rejected.
4. . Bidder must upload last 03 years ITR copy.
5. An Affidavit Must to be provided that Bidder has not been blacklisted or debarred.
6. Bidder must be upload OEM Authorization certificate.

7. Bidder must be upload Specification/Photo of Supply product.
8. The Turnover Certificate of Bidder and OEM for last three years with UDIN must be submitted.
9. Bidder Must upload Two year warranty Certificate of OEM.
10. Bidder Should have upload ISO Certificate (ISO 9001:2015,45001:2018).
11. The CCTV OEM should have below ISO Certifications for Quality, Environment, Security management and Health & Safety Management system for manufacturing of all types of Cameras & NVR/ DVR. All the CCTV Components (Camera, VMS, NVR, DVR, etc) should be from same OEM for seamless integration and ease of operation. The Bidder/s shall attach the copy of the OEM's ISO Certificate along with the bid. ISO9001:2015, ISO 14001:2015,ISO 20000-1: 2018 ISO 27001:2013, ISO 45001:2018, IEC27032:2012, CMMI Level 5.
12. CCTV OEM should have manufacturing in India since last Five years and Foreign CCTV OEM should have manufacturing unit globally from last 10 Years. (Documentary evidence should be submitted).
13. OEM company for Camera & NVR should have its own company registered in India (under Incorporation of Companies Act, 1956/ 2013) since last 10 year. Any representation through a Dealer/ Distributor/ Subsidiary/ consortium shall not be treated as OEM. This has to be supported by necessary statutory documents.
14. Material will be Supply Installation Testing and Commissioning to Nagar Panchayat Bahadurganj.
15. CCTV Camera OEM should be fulltime member of ONVIF and quoted models should be listed on ONVIF official website (All the certifications & Credentials should be valid on the date of technical evaluation). The CCTV OEM should not be suspended/ blacklisted by ONVIF.
16. The CCTV OEM should have its office and service/ support center in Bihar. Required sales, service tax number/ certificate to be provided along with the bid.
17. Maintenance will be Three (3) year. Fully Annual maintenance charge of installed CCTV camera will be given by Nagar Panchayat bahadurganj @ 7.5% of total contract value per year all the charges included in the annual maintenance. Annual Maintenance will be implement after 03 months of successful Trial and run period.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be

determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a

land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---